

26STCV01060 26STCV01060

County: los-angeles

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Case Number: 26STCV01060 Hearing Date: September 8, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 8, 2026 TRIAL DATE: May 15, 2028

CASE: Zhao Zehao v. BMW of North America, LLC

CASE NO.: 26STCV01060

PLAINTIFF'S

MOTIONS TO COMPEL DEFENDANT'S FURTHER RESPONSES TO FORM INTERROGATORIES,
SPECIAL INTERROGATORIES, REQUEST FOR PRODUCTION OF DOCUMENTS, AND REQUESTS FOR
ADMISSIONS

DEFENDANT

BMW OF NORTH AMERICA, LLC'S MOTIONS TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO
DEFENDANT'S SPECIAL INTERROGATORIES, FORM INTERROGATORIES, AND REQUEST FOR
PRODUCTION, SET ONE (1) AND REQUEST FOR SANCTIONS

I. BACKGROUND

Plaintiff, Zhao Zehao, brings this Song-Beverly action
against Defendant, BMW of North America, LLC.

Before the court are six motions: (i) Plaintiff's four
motions to compel Defendant's further responses to Form Interrogatories,
Special Interrogatories, Request for Production, and Request for Admissions,

filed on May 19, 2026, and (ii) Defendant's two motions to compel Plaintiff's further responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents, filed on July 1, 2026.

The parties each request sanctions.

The court begins by addressing Plaintiff's motions. In Section V, the court briefly discusses monetary sanctions in connection to all discovery motions filed by the parties.

II. LEGAL STANDARD

Under Code of Civil Procedure sections 2030.300, 2031.310, and 2033.290, parties may move for a further response to interrogatories, requests for production of documents, and requests for admissions where an answer to the discovery requests are evasive or incomplete or where an objection is without merit or too general.    

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California Rules of Court, rule 3.1345(a)(3) requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses.  

III. DISCUSSION

RE PLAINTIFF'S MOTIONS TO COMPEL FURTHER

A. Timeliness

Defendant argues the motions were untimely filed by one day. Notice of the motions must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response.   (Code Civ. Proc.,    2030.300(c); 2031.310(c); 2033.290(c).)     Defendant is mistaken. Defendant electronically served its verifications on April 1, 2026. Electronic service extends the deadline to act by two court days. The two court date extension is tacked onto the end of the applicable deadline. (See Code Civ. Proc.   1010.6(a)(3)(B); see also *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127; *Cole v. Superior Court* (2022) 87 Cal.App.5th 84.) Under this statutory method of calculation, the deadline for Plaintiff's motions was May 20, 2026. Plaintiff filed these motions on May 19, 2026. The motions are timely.

B. At-Issue Discovery

Plaintiff seeks further responses to Form Interrogatories

Nos. 15.1, 17.1; Special Interrogatories Nos. 4, 6-9, 11; Requests for Production of Documents Nos. 1-10, 13-15; and Requests for Admissions Nos. 1, 2, 4, 15, 16.

1. Form Interrogatories (FROG)

FROG No.

15.1: DENIED. Defendant's response is code compliant.

FROG No.

17.1: GRANTED. Defendant's supplemental responses to subsections (b), (c), and (d) are deficient. Further responses are warranted.

2. Special Interrogatories (SROG)

SROG No. 4:

GRANTED IN PART. This SROG is somewhat vague. The court cabins the scope of the SROG to the year 2023. A further response is warranted pursuant to this limitation.

SROG No. 6: DENIED. Impermissibly compound.

SROG No. 7: GRANTED. Defendant's objections lack merit. A further response is warranted.

SROG No. 8: GRANTED. Defendant's objections lack merit. A further response is warranted.

SROG No. 9: DENIED. Impermissibly argumentative.

SROG No. 11: GRANTED. Defendant's objections lack merit. A further response is warranted.

3. Request for

Production of Documents (RFP)

RFP Nos. 1-9:

GRANTED. Defendant's responses are incomplete and not code compliant. (See Code Civ. Proc., 2031.220.) The objections also lack merit. Further responses are warranted.

RFP Nos. 13-15: GRANTED

IN PART. This SROG is somewhat vague. The court cabins the scope of the SROG to the year 2023. A further response is warranted pursuant to this limitation.

4. Requests for Admissions (RFA)

RFA Nos. 1-2: GRANTED.

RFA No. 4: GRANTED.

RFA Nos. 15-16: DENIED.

Vague and unintelligible.

C. Conclusion

Plaintiff's motions are GRANTED IN PART, DENIED IN PART. Defendant is ordered to provide further responses within 30 days of this order.

IV. DISCUSSION RE DEFENDANT'S MOTIONS TO COMPEL FURTHER

A. Meet and Confer

Plaintiff

argues the motions should be denied because Defendant did not meet and confer in good faith. The court disagrees. Plaintiff served a meet and confer letter addressing the issues in this motion and informing Defendant that supplemental responses would be served to most, if not all, at-issue interrogatories by June 26, 2026. Plaintiff, however, failed to serve supplemental responses by that date. The court finds that Defendant satisfied its meet and confer obligation.

B. At-Issue Discovery

Defendant

seeks further responses to SROG Nos. 1, 2, 3, 20, 21, 24, 25, 28, 53; FROG Nos. 2.7, 9.2, 12.1, 12.4, 17.1; and RFP Nos. 6, 11, 13, 20, 25, 26, 28, 30, 31, 33, 34, 35, 37, 38, 50, 51.

The court

has reviewed Plaintiff's responses.

Plaintiff asserted meritless objections and evasive substantive responses to these discovery requests.

Further responses are warranted.

To the extent Plaintiff argues the motion is moot as to an at-issue discovery request because Plaintiff served supplemental responses during the pendency of the motion, the argument is meritless. The service of supplemental responses during the pendency of a motion to compel further does not moot the motion. (See *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 ["Moreover, to adopt the County's interpretation of the discovery act—that a party opposing a motion to compel further responses may unilaterally divest the court of authority to rule on the motion by serving a further response in the interim—would permit a party faced with a motion to compel to delay its adjudication indefinitely by successive supplemental but inadequate responses, each prompting a further motion to compel, each of which in turn would be defeated by piecemeal supplementation."].)

C. Conclusion

Defendant's motions are GRANTED. Plaintiff is ordered to provide further responses within 30 days of this order.

V. MONETARY

SANCTIONS

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The parties request sanctions in connection to their respective motions. Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust.¿ (Code Civ. Proc., §§ 2030.300(d); 2031.310(h);

2033.290(d).)¿¿

Based on the court's review of the pleadings, the court would typically award sanctions. However, the court declines to do so here given that any sanctions award against one party would cancel the other.

VI. DISPOSITIONS

1. Plaintiff's

motions to compel further are Granted In Part, Denied In Part. As indicated herein, Defendant is ordered to provide further responses within 30 days of this order.

2. Defendant's motions

to compel further are Granted. As indicated herein, Plaintiff is ordered to provide further responses within 30 days of this order.

3. The parties'

requests for sanctions are Denied.

Moving parties to give notice, unless waived.

Dated: September 8, 2026

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¿ Brock T. Hammond

¿ Judge of the Superior Court¿